

September 21, 2026
Dept. 9
Probate Tentative Rulings

4.	26PR0041	THE ESTATE OF LEROY ALVIN NEWTON
FINAL DISTRIBUTION HEARING		

Letters of Administration were issued on April 6, 2026, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on July 22, 2026. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

Petitioner is the sole heir of Decedent and waived the filing of a final account.

As Petitioner is the sole beneficiary, no Proof of Service of Notice of the hearing was filed. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes a full distribution to Petitioner.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable, nor are any California or federal income or personal property taxes payable.

The Petition requests:

1. Notice of the Petition has been given as required by law;
2. All acts, transactions and proceedings of the Administrator be ratified, confirmed and approved;
3. The report and First and Final Account filed with the Petition be settled, allowed and approved;
4. The administration of the estate be brought to a close without the requirement of an accounting;

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5. That the assets described in this decree of distribution comprise the entire estate on hand for distribution;
6. That no federal or California state estate taxes were due from the estate;
7. That no personal property taxes were due and payable by said estate;
8. That waiver of statutory compensation to the personal representative be approved;
9. That Administrator be authorized to pay statutory attorney fees to Paul R. Kraft in the amount of \$12,399.00;
10. Administrator be authorized and directed to pay Paul R. Kraft the sum of \$482.04 as reimbursement for costs advanced by Paul R. Kraft on behalf of the estate;
11. All creditor claims not properly filed with the court and served on the estate are barred;
12. Final distribution of the estate in Administrator's hands and any other property of Decedent or the estate not now known or discovered be made to the persons entitled to it, as set forth in Exhibit C;
13. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #4:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, SEPTEMBER 20, 2027, IN DEPARTMENT NINE BY WHICH TIME THE COURT EXPECTS RECEIPTS AND AN EX PARTE PETITION FOR FINAL DISCHARGE (JUDICIAL COUNCIL FORM DE-295) TO BE FILED WITH THE COURT. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.